

DIVIDED THEY STAND
Residents of the Vadodara housing society protest against the allotment to a Muslim woman

GUJARAT

A Disturbing Act at Play

the Vadodara Municipal Corporation (VMC) claims due process was followed in the allotment, sources told INDIA TODAY that the controversial allocation is indeed an oddity—considering the norm—and happened because the VMC failed to take note of details that would have acted as indicators of the woman's religion, her name for example. The VMC has since said the issue needs to be resolved internally between the parties. Sources in the know say the woman neither wants to let go of her flat—the VMC is backing her for now—nor go to court.

Gujarat's DAA, brought in originally as legal support to the riot-hit, is now routinely used in polarising ways

While the VMC allotting a flat to a Muslim woman in a Hindu-dominated housing complex may be a rare occurrence, the citing of the Disturbed Areas Act (DAA) to stop property transactions in Gujarat is not. Last year, Geeta Goradia, a Vadodara-based businesswoman, found herself at the receiving end of this when she sold her property in a Hindu-dominated area of the city to educationist businessman Faisal Fazlani. Five of Geeta's neighbours moved the high court against the transaction on "communal grounds", citing the Act.

First brought in during Congress governance in the state in 1986, the DAA required the transfer of interfaith properties in communally sensitive areas to be examined by the district collector to ensure that the market value of the property had been maintained. A revision in 1991 by the Chimanbhai Patel-led Janata Dal government (supported by the Congress) enacted it as a permanent legislation and gave power to the state government to declare certain areas as disturbed and to prohibit the transfer of immovable properties in such areas. In 2019, an amendment to the Act sought to give more powers to the state government and collector, wherein the government could notify an area as a 'disturbed' area if it considered there existed the possibility of a communal riot, or of a community's 'polarisation', or the 'improper clustering' of a community, thereby disturbing the 'demographic equilibrium' of the area. Moreover, while the original concept was to bring an area under the DAA for a temporary period of one to two years, the 2019 amendment sought to alter it to a mechanical renewal from time to time, making a temporary provision permanent. The proposal was challenged in court by the Jamiat Ulama-e-Hind Gujarat in 2021, with the state high court asking the government not to issue any fresh notification under the amended sections. The matter is currently subjudice. The petitioners claimed that the BJP government has already expanded areas covered under the DAA from small parts of eastern Ahmedabad originally to almost 70 per cent of the city, besides 60 per cent of Vadodara, major portions of Bharuch city, Surat, Bhavnagar, Rajkot, Himmatnagar, Godhra, Kapadvanj, Dhandhuka, Borsad and Petlad, at the time the petition was filed.

According to a source in the know of court proceedings, "as new areas are being included, commercial offices and shops are also impacted". Goradia and Faisal were lucky. In November last year, the Gujarat HC dismissed the plea filed by Goradia's neighbours. But many such cases have been languishing for years at the collector's office, say sources. "The precise reason for introducing this law was to stop polarisation, but it has been turned on its head now. The Act clearly defines the occurrence of communal riots as the prerequisite to bring an area under the DAA. By the BJP's own admission, and supported by NCRB data [for